IN THE NATIONAL COMPANY LAW TRIBUNAL,
NEW DELHI, COURT-III (SPECIAL BENCH)
COMPANY APPLICATION NO. (CAA) - 5(ND)/2024

(Under Section 230-232 and other applicable provisions of the Companies Act, 2013 r/w the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016)

IN THE MATTER OF SCHEME OF AMALGAMATION

BETWEEN

M/s. SUPERB BUILDWELL PRIVATE LIMITED

..... Applicant Company No. 1/ Transferor Company No. 1

AND

M/s. PARADISE PROPBUILD PRIVATE LIMITED

..... Applicant Company No. 2/ Transferor Company No. 2

AND

M/s. VRINDA REALTY (INDIA) PRIVATE LIMITED

..... Applicant Company No. 3/ Transferor Company No. 3

WITH

M/s. CIMCO PROJECTS LIMITED

..... Applicant Company No. 4/ Transferee Company

AND

THEIR RESPECTIVE CREDITORS AND SHAREHOLDERS

Order Pronounced On: 02.02.2024

CORAM:

SHRI BACHU VENKAT BALARAM DAS, HON'BLE MEMBER (JUDICIAL)

SHRI RAHUL BHATNAGAR, HON'BLE MEMBER (TECHNICAL)

PRESENT:

For the Applicant : Mr. Anang Shandilya, Adv.

ORDER

PER: RAHUL BHATNAGAR, MEMBER (TECHNICAL)

1. This is a 1st Motion Petition jointly filed by the Applicant Companies seeking approval of this Tribunal for the Scheme of Amalgamation under Sections 230 and 232 of the Companies Act, 2013 read with the Companies (Compromise, Arrangements and Amalgamations) Rules, 2016 in respect of above Applicant Companies. It is represented that the registered office address of all the Applicant Companies is situated in New Delhi and therefore the subject matter of the said petition falls within the jurisdiction of this Tribunal. Ld. Counsel has given the brief description of the Applicant Companies, which are as follows:

   i. The Applicant Company No. 1 namely M/s. Superb Buildwell Private Limited, bearing CIN:U45200DL2006PTC154717 was incorporated on 11/10/2006 under the provisions of the Companies Act, 1956 as a Company limited by Shares (Non-govt. company) with the Registrar of Companies, NCT of Delhi and Haryana. The registered office address of Applicant Company No. 1 is situated at C-97, Ground Floor, Lajpat Nagar-II, New Delhi-110024. The Authorized Share Capital of the Company is Rs. 31,00,000/- and the issued, subscribed and paid-up share capital of the Company is Rs. 31,00,000/-.

   ii. The Applicant Company No. 2 namely M/s. Paradise Propbuild Private Limited, bearing CIN:U45200DL2007PTC160018 was incorporated on 02/03/2007 under the provisions of the Companies Act. 1956, as a Company limited by Shares (Non-govt. company) with the Registrar of Companies, NCT of Delhi and Haryana. The registered office of Applicant Company No. 2 is situated at C-97, Ground Floor, Lajpat Nagar-II, New Delhi-110024. The Authorized Share Capital of the Company is Rs. 31,00,000/- and issued, subscribed and paid-up share capital of the Company is Rs. 31,00,000/-.

   iii. The Applicant Company No. 3 namely M/s. Vrinda Realty (India) Private Limited, bearing CIN:U70101DL2004PTC124653 was incorporated on 13/02/2004 under the provisions of the Companies Act. 1956, as a Company limited by Shares (Non-govt.

company) with the Registrar of Companies, NCT of Delhi and Haryana. The registered office of Applicant Company No. 3 is situated at C-97, Ground Floor, Lajpat Nagar-II, New Delhi-110024. The Authorized Share Capital of the Company is Rs. 50,00,000/- and issued, subscribed and paid-up share capital of the Company is Rs. 5,00,000/-.

iv. The Applicant Company No. 4 namely M/s. Cimco Projects Limited, bearing CIN:U70109DL1993PLC272426 was incorporated on 01/10/1993 under the provisions of the Companies Act. 1956, as a Company limited by Shares (Non-govt. company) with the Registrar of Companies, NCT of Delhi and Haryana. The registered office of Applicant Company No. 4 is situated at C-97, Ground Floor, Lajpat Nagar-II, New Delhi-110024. The Authorized Share Capital of the Company is Rs. 10,00,00,000/- and issued, subscribed and paid-up share capital of the Company is Rs. 9,99,57,000/-.

2. The Affidavits in support of the above petition have been sworn by Mr. Surendra Jha, Authorised Representative of all Applicant Companies who has been authorized vide board resolutions for all the Applicant Companies and have been duly filed, along with the petition.
3. The Board of Directors of all the Applicant Companies in their separate meetings held on 03.10.2023 approved and adopted the Scheme of Amalgamation.
4. The Applicant Companies have filed their Memorandum and Articles of Association inter alia delineating their object clauses as well as the latest audited annual financial report for the year ended 31.03.2023 as required under section 232(2)(e) of the Companies Act, 2013.
5. The Applicant Companies have filed the true copy of the proposed Scheme of Amalgamation. The Amalgamation of the Transferor/ Applicant No. 1 to 3 Companies with the Transferee/Applicant No. 4 Company shall result in:

"(i) Consolidation of the businesses presently being carried on by the Transferor Companies and the

Transferee Company, which shall be beneficial to the interests of the shareholders, creditors and employees of both the companies and to the interests of public at large, as such amalgamation would create greater synergies between the businesses of both the companies and would enable them to manage their business more efficiently by effectively pooling the technical and marketing skills of both the Companies as an integrated entity and also enable effective management and unified control of operations;

(ii) Creating better synergies and optimal utilisation of resources built by the Transferor Companies;

(iii) Better administration and cost reduction (including reduction in administrative and other common costs); and

(iv) Better utilisation of professional expertise and other manpower resources."

6. The material provisions of the proposed Scheme of Amalgamation are as under:

i) All assets and liabilities including reserves and undertakings of the Transferor Companies shall without further act, instrument or deed be and stand transferred to and vested in and/or is deemed to have been transferred to and vested in the Transferee Company.

ii) The Amalgamation shall take effect from 31st March, 2023 or such other date, as this Hon'ble Tribunal may approve.

iii) All employees of the Transferor Companies in service on the Effective Date shall become the employees of the Transferee Company on such date without any break or interruption in service

and on the terms and conditions not in any way less favorable to them than those subsisting with reference to the Transferor Companies as the case may be on the said date.

7. The Applicant Company No. 1 has 3 (Three) equity shareholders as on 31st March, 2023. The consent letters of all the Equity Shareholders along with the affidavit are filed along with the Petition. The Applicant Company No. 1 has NIL Secured Creditors as on 31st March, 2023. The Applicant Company No. 1 has 1 (One) Unsecured Creditor as on 31st March, 2023. The consent letter of Unsecured Creditor along with the affidavit is filed along with the Petition. The list of Secured and Unsecured Creditors is duly certified by the Chartered Accountant and the Certificate is duly filed along with the petition.
8. The Applicant Company No. 2 has 3 (Three) equity shareholders as on 31st March, 2023. The consent letters of all the Equity Shareholders along with affidavit is filed along with the Petition. The Applicant Company No. 2 has NIL Secured Creditors as on 31st March, 2023. The Applicant Company No. 2 has 1 (One) Unsecured Creditor as on 31st March, 2023. The consent letter of Unsecured Creditor along with the affidavit is filed along with the Petition. The list of Secured and Unsecured Creditors is duly certified by the Chartered Accountant and the Certificate is duly filed along with the petition.
9. The Applicant Company No. 3 has 4 (Four) equity shareholders as on 31st March, 2023. The consent letters of all the Equity Shareholders along with affidavit are filed along with the Petition. The Applicant Company No. 3 has NIL Secured Creditors as on 31st March, 2023. The Applicant Company No. 3 has 2 (Two) Unsecured creditors as on 31st March, 2023. The consent letters of all the Unsecured Creditors along with affidavit are filed along with the Petition. The list of Secured and Unsecured Creditors is duly certified by the Chartered Accountant and the Certificate is duly filed along with the petition.
10. The Applicant Company No. 4 has 7 (Seven) equity shareholders as on 31st March, 2023. The consent letters of all the Equity Shareholders

along with affidavit are filed along with the Petition. The Applicant Company No. 4 has NIL Secured Creditors as on 31st March, 2023. The Applicant Company No. 4 has 2 (Two) Unsecured creditors as on 31st March, 2023. The consent letters of all the Unsecured Creditors along with affidavit are filed along with the Petition. The list of Secured and Unsecured Creditors is duly certified by the Chartered Accountant and the Certificate is duly filed along with the petition.

11. Having heard the submissions made by Ld. Counsel and having perused the records as well as the documents placed on record, we allow the following prayers:

> *"In view of the above facts and circumstances mentioned above, it is most respectfully prayed that the meetings of Equity Shareholders and Unsecured Creditors of the Applicant Companies may kindly be dispensed with in view of the written consents given by the Equity Shareholders and Unsecured Creditors of the Applicant Companies or in the alternative if this Hon'ble Tribunal directs the Applicant Companies to convene the meetings of Equity Shareholders and Unsecured Creditors, then directions may kindly be issued for convening meetings of Equity Shareholders and Unsecured Creditors of the Applicant Companies at the Registered Office of the Applicant Companies, or at such other place as may be fixed by this Hon'ble Tribunal, and on such date(s) and at such time(s) as this Hon'ble Tribunal may direct, and that a Chairman and alternative Chairman may be appointed for meetings to be held.*
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> *It is further prayed that the publication of the notice of the proposed meetings may also be dispensed with or alternatively may be ordered to be published in an English Newspaper (Business Standard) and the Hindi Newspaper (Business Standard) or in such other 1nanner, as this Hon'ble Tribunal may direct. It is prayed that any other order or directions, as this Hon'ble Tribunal deems fit and proper, may also kindly be granted."*

12. Since the Shareholders of the Applicant Companies have given their consent to the proposed scheme of Amalgamation, we direct that the meetings of Equity Shareholders of the Applicant Companies be dispensed with.
13. Since there are no Secured Creditors of the Applicant Companies, hence, question of convening meetings of the Secured Creditors of the Applicant Companies does not arise.
14. Since the Unsecured Creditors of the Applicant Companies have given their consent to the proposed scheme of Amalgamation, we direct that the meetings of Unsecured Creditors of the Applicant Companies be dispensed with.
15. The prayer sought in the present petition bearing CA(CAA)/5/(ND)/2024 stands **allowed** on the aforesaid term.
16. All the aforesaid directions are to be complied with strictly in accordance with the applicable law including forms and formats contained in the Companies (Compromises, Arrangements, Amalgamations) Rules, 2016 as well as the provisions of the Companies Act, 2013 by the Applicant Companies.
17. Let copy of the order be served to all the parties.

Sd/-

(RAHUL BHATNAGAR)
MEMBER (TECHNICAL)

Sd/-

(BACHU VENKAT BALARAM DAS)
MEMBER (JUDICIAL)